

due Plaintiffs under the Settlement Agreement, as well as \$4,000.00 in attorney fees, **and \$1,736.50 costs** related to this enforcement action, for a total judgment of \$11,736.50.” See MPA, p. 11 (emphasis added). The \$1,736.50 referenced in the MPA is not simply “costs,” but appears to be the total of attorneys’ fees (\$1,513.60) and costs (\$222.90).* See Supporting Declaration, ¶13.

Importantly, the \$6,000 principal stated in the MPA appears to be inaccurate. The only \$6,000 principal amount referenced in the agreement is the attorneys’ fees portion. See Settlement Agreement, ¶2 [“One check made payable to "Melmed Law Group, P.C." for Six Thousand Dollars (\$6,000)]. Nothing in the Supporting Declaration suggests that this was the only unpaid amount.

The principal amount due under Settlement Agreement appears to be the three (3) \$3,000 payments plus the \$6,000 attorneys’ fees portion, which total the \$15,000 set forth in Paragraph 2 of Settlement Agreement. See Settlement Agreement, ¶2.

The Supporting Declaration appears to represent that no payments were made by Defendant. See Settlement Agreement, ¶5. So it is not clear to the Court why the principal balance due would be some figure other than the \$15,000 settlement amount.

*The Court further notes that the Supporting Declaration fails to include a total of the referenced costs, requiring the Court to “do the math.” See Supporting Declaration, ¶13. And in doing the math, it appears that the referenced cost items (\$77.70, \$15.70 and \$129.50) total \$222.90. Plaintiffs’ figure of \$11,736.50 appears to be the total of \$222.90 in costs, attorneys’ fees of \$1,513.60 and a purported \$10,000 in principal. Thus, the “\$1,736.50 costs” stated in the MPA is actually the total of the referenced attorneys’ fees and costs is (\$1,513.60 plus \$222.90).

The Court denies the motion without prejudice to resubmission with clarification of the accounting.

Analysis

Defendant was duly served with the motion. The motion is unopposed.

Disposition

The Court finds and orders as follows:

1. The Motion to Enforce Settlement Agreement is DENIED, without prejudice.
2. In the exercise of the Court’s discretion, the clerk of the Court is directed to set the matter for a Case Management Conference (CMC) and give notice to the parties of the CMC.

***HEARING ON MOTION IN RE: NTC AND MTN FOR RECONSIDERATION REGARDING
COMMISSIONERS JURISDICTION AND REQUEST FOR REVIEW OF NEW EVIDENCE
FILED BY: LIU, RUBY SHE**

TENTATIVE RULING:

Respondent Ruby Liu (“Respondent”) filed a Motion for Reconsideration on December 1, 2025 (the “Motion for Reconsideration”). The Motion for Reconsideration was set for hearing on December 30, 2025.

Background

This matter is a Civil Harassment Restraining Order proceeding filed by the petitioner and protected party Malina Mae Curiale (“Petitioner”).

A hearing was held by the Court on September 2, 2025. See Minute Order dated September 2, 2025. Both parties were present. *Id.* An evidentiary hearing was conducted and the Court considered the testimony of the parties and all other evidence submitted. *Id.*

The Court granted the CHRO and entered its Civil Harassment Restraining Order after Hearing (the “CHRO”) as against the restrained party, Respondent.

Respondent filed an appeal of the ruling and also filed a prior motion seeking to set aside the ruling and requesting a “de novo” hearing. The prior motion was denied given the pending appeal. See Order dated October 31, 2025. A notice of abandonment of the appeal was filed by Respondent on November 4, 2025.

Respondent then filed a Motion to Vacate Civil Restraining Order on October 15, 2025 (the “Motion to Vacate CHRO”). The Motion to Vacate CHRO was denied, in full, by the Court’s Order on Motion entered November 18, 2025 (the “Order Denying Motion to Vacate CHRO”).

By this Motion for Reconsideration, Respondent seeks reconsideration of the Court’s Order Denying Motion to Vacate CHRO.

Analysis

1. Lack of Adequate Notice

Although Respondent filed a Proof of Service of the Motion for Reconsideration on December 12, 2025, it appears that the notice given was defective. The caption page of the Motion for Reconsideration does not appear to have had the motion hearing date, time and department written in on it. Nothing in the filed Proof of Service or any other pleading filed on the motion indicates that notice of the motion hearing date, time and department was given to the protected party Petitioner. For that reason alone, the Court would deny the motion.

2. No Basis for Reconsideration

Even if proper notice of the motion had been given, the Court would deny the motion.

Code of Civil Procedure section 1008 governs a motion for reconsideration. The statute provides “[w]hen an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected

by the order may, within 10 days after service upon the party of written notice of entry of the order and based upon new or different facts, circumstances, or law, make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order.” Code Civ. Proc. § 1008 (emphasis added). The different state of facts language in the statute requires that the party seeking reconsideration provide both newly discovered evidence and an explanation for the failure to have produced such evidence earlier. *Robbins v. Los Angeles Unified School Dist.* (1992) 3 Cal.App.4th 313, 317.

Respondent refers, among other things, to the “new facts and evidence presented in Section III” of her Motion for Reconsideration. See Declaration of Ruby Liu filed December 1, 2025, p. 2, Ins. 1-20. The facts referenced in Section III of the motion are supposed evidence disproving the protected party Petitioner’s claimed pattern of harassment that led to the subject CHRO. Motion for Reconsideration, p. 4 (Section III.A labeled “Evidence Contradicting Petitioner’s Claimed ‘Two-Year Harassment Timeline’”). Those are NOT substantially new facts. Respondent previously presented considerable evidence relating to the pattern of harassment which she argued warranted vacating the CHRO. That evidence was raised and discussed, at length, in her prior motion papers, which were considered in full by the Court. See e.g. Motion to Vacate CHRO, p. 6 (“The Petitioner’s false testimony of the two-year timeline was meant to establish long term harassment to mislead the court. I have never harassed her...”). Aside from a few items addressed below, Respondent’s broad recitation and arguments here rely on substantially the same facts as previously considered and rejected by the Court. Respondent attempts to re-argue substantially the same matters previously considered by the Court. See *San Francisco v. Muller* (1960) 177 Cal.App.2d 600, 603 (“...the court will refuse to consider a new motion supported by substantially the same showing as the one denied.”).

Moreover, Respondent conflates making a showing of new facts and evidence not presented in connection with the last motion denied by the Court and facts and evidence not presented in the underlying CHRO proceeding. The issue is not showing new facts and evidence that were not raised at the subject underlying CHRO hearing. The issue, for purposes of reconsideration of the Court’s November 18, 2025 Order, is whether there are new facts and evidence not presented in connection with the last motion leading to that order. The issue of a professed inability to secure third-party information relating to social media and other evidence that Respondent believes could have disproved Petitioner’s contentions was raised and considered in the earlier motion proceedings.

To the extent that Respondent has specifically identified new evidence not presented in connection with the Motion to Vacate CHRO, the Court concludes that Respondent has failed to make an adequate showing of diligence. Just indicating that the evidence was not in a party’s possession or control, does not demonstrate the efforts to identify and procure the evidence. Even if Respondent had diligently sought to procure the evidence and was unable to proffer it in

the prior motion proceedings, none of the “new evidence” changes the Court’s view on the merits. Among other things, the Court has considered and rejects the argument that the discovery of “a text message from my husband regarding an alleged false abuse-based immigration claim” after the proceedings on the Motion to Vacate CHRO justifies reconsideration. Even if newly discovered, the issue and other evidence relating to it was raised previously by Respondent. The issue of the Commissioner excluding information regarding immigration status was raised during the prior hearing and the Court was clear that nothing about that issue would alter its conclusions regarding the lack of any grounds to vacate the CHRO. The Court also considered the transcript of the underlying CHRO hearing before the Commissioner, including those portions where the immigration related issue was addressed. One more text message on the same issue does not constitute “new or different facts” and, even if it did, the evidence does not change the Court’s conclusions. In addition, nothing in the August 5th transcript changes the Court’s conclusions.

Disposition

The Court finds and orders as follows:

1. The Motion for Reconsideration is DENIED.